

**CV-26-004906 FLORY, RYAN T vs HYUNDAI MOTOR AMERICA –
Defendant’s Motion to Compel Binding Arbitration – DENIED without
prejudice.**

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: Defendant Hyundai Motor America's motion to compel binding arbitration appears premature. The instant case is a lemon law action filed after January 1, 2025. Therefore, it appears the action is governed by Code of Civil Procedure section 871.26. Section 871.26 requires, inter alia, that “[w]ithin 90 days after filing of the answer or other responsive pleading, all parties shall schedule a mediation to occur within 150 days after filing of the answer or other responsive pleading with a court-appointed or private mediator.” Except for initial disclosures and the initial depositions, “all other discovery shall be stayed until mediation is concluded.” (Code Civ. Proc., § 871.26.) Accordingly, the motion is DENIED without prejudice. Defendant may re-file its motion to compel after mediation is concluded.

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